

HEADNOTE

- “1. It is not sufficient in proceedings before the UPC that the party representative logs into the Case Management System (CMS) through a secure two-factor authentication process, which constitutes a strong multi-factor authentication mechanism, and confirms their identity. It is required that all written submissions be signed. If such a signature is lacking, the written submission filed in the CMS does not meet the requirements for an effective filing.*
- 2. It follows that a document filed as a statement of appeal that is not properly signed cannot be regarded as a statement of appeal filed in accordance with Rule 224 of the Rules of Procedure and cannot be admitted.*
- 3. The presence of the signature required under Rule 4.1 of the Rules of Procedure on the statement of appeal to be filed electronically is not part of the examination of formal requirements in accordance with Rule 229 of the Rules of Procedure.”*

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Infringement action

PATENT
EP 2 223 589

Beet enclosure with a lockable sheet
metal strip

KEYWORDS

Filing and signing of documents (Rule 4 Ro...)

Time limits for filing the appeal (Art. 73(1) ...)

Rule 224 Time periods for lodging the Statement of appeal and the Statement of grounds of appeal

SUMMARY

The Court of Appeal Luxembourg ruled on an infringement action. The patent at issue relates to a beet enclosure with a lockable sheet metal strip. According to the headnotes of the decision, written submissions filed in the UPC's Case Management System must be properly signed by the party representative, even though secure two-factor authentication and identity confirmation are already in place. A statement of appeal that lacks the required signature cannot be admitted as a valid filing under the Rules of Procedure. The examination of whether a signature is present on electronically filed statements of appeal falls outside the formal requirements review process set out in the Rules of Procedure.